

25VECV04605 25VECV04605

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 25VECV04605 Hearing Date: August 14, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Tali

Kestelman, et al.,

Plaintiffs,

v.

Angelica

Espinoza Pena, et al.

Defendants.

Case

Number Department

25VECV04409

107

COURT'S [TENTATIVE] RULING RE:

Expedited Petition to Confirm

Minor's Compromise

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

¿

Deny

I.

BACKGROUND

This

action arises from a motor vehicle accident. (Complaint ¶ 13.) On August 11, 2025, Plaintiffs Tali Kestelman and Gil Najum, a minor, by and through his parent and Guardian Ad Litem, Tali Kestelman ("Plaintiffs") filed a complaint against Defendants Angelica Espinoza Pena, Juan Ramos, and Does 1 through 100, alleging causes of action for: (1) negligence; (2) negligence per se; and (3) statutory liability.

On

February 27, 2026, Plaintiffs filed a notice of settlement of entire case.

On

March 2, 2026, Petitioner Tali Kestelman ("Petitioner") filed a petition for expedited approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability (the "First Petition"). The court denied the First Petition. (04/27/26 Minute Order p. 3.)

On

June 8, 2026, Petitioner filed a second petition for expedited approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability (the "Second Petition"). The court denied the Second Petition. (06/26/26 Notice of Rejection of Electronic Filing.)

On

July 6, 2026, Petitioner filed a third petition for expedited approval of compromise of claim or action or disposition of proceeds of judgment for minor

or person with a disability (the "Petition"). As of August 11, 2026, no opposition has been filed.

II.

LEGAL

STANDARD

"An agreement to settle or compromise a claim made by a minor 'is valid only after it has been approved, upon the filing of a petition, by the superior court . . .' in the county where the minor resides or the action could have been brought." (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1337.)

"[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests. . . . [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (Goldberg v. Superior Court (1994) 23 Cal.App.4th 1378, 1382.)

"A petition for court approval of a compromise or covenant not to sue under Code of Civil Procedure section 372 must comply with rules 7.950 or 7.950.5, 7.951, and 7.952." (Cal. Rules of Court 3.1384(a).) The petition "must be verified by the petitioner and must contain a full disclosure of all information that has any bearing on the reasonableness of the compromise, covenant, settlement, or disposition." (Cal. Rules of Court, rule 7.950.) "The person petitioning for approval of the compromise of the claim on behalf of the minor or person with a disability and the minor or person with a disability must attend the hearing on the petition unless the court for good cause dispenses with their personal appearance." (Cal. Rules of Court, rule 7.952(a).)

"An order for the deposit of funds of a minor or a person with a disability, and a petition for the withdrawal of such funds, must comply with rules 7.953 and 7.954." (Cal. Rules of Court, rule 3.1384(b).)

California Rules of Court, rule 7.955(a) requires the court to use "a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or

property paid or to be paid for the benefit of a minor or a person with a disability” and requires that the court “give consideration to the terms of any representation agreement made between the attorney and the representative of the minor . . . and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events.”

California Rules of Court, rule 7.955(b) sets forth fourteen nonexclusive factors the court may consider in determining a reasonable attorney's fee. Rule 7.955(b)'s factors include,

(1)

The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.

(2)

The amount of the fee in proportion to the value of the services performed.

(3)

The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.

(4)

The amount involved and the results obtained.

(5)

The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.

(6)

The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.

(7)

The experience, reputation, and ability of the attorney or attorneys performing the legal services.

(8)

The time and labor required.

(9)

The informed consent of the representative of the minor or person with a disability to the fee.

(10)

The relative sophistication of the attorney and the representative of the minor or person with a disability.

(11)

The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.

(12)

Whether the fee is fixed, hourly, or contingent.

(13)

If the fee is contingent:

(A)

The risk of loss borne by the attorney;

(B)

The amount of costs advanced by the attorney; and

(C)

The delay in payment of fees and reimbursement of costs paid by the attorney.

(14)

Statutory requirements for representation agreements applicable to particular cases or claims.

(Cal.

Rules of Court, rule 7.955(b).)

“A petition requesting court approval and allowance of an attorney’s fee under (a) must include a declaration from the attorney that addresses the factors listed in (b) that are applicable to the matter before the court.” (Cal. Rules of Court, rule 7.955(c).)

Per California Rules of Court, rule 7.950.5, expedited petitions must satisfy additional requirements, including:

- (1) The petitioner is represented by an attorney authorized to practice in the courts of this state;
- (2) The claim is not for damages for the wrongful death of a person;
- (3) No portion of the net proceeds of the compromise, settlement, or judgment in favor of the minor or disabled claimant is to be placed in a trust;
- (4) There are no unresolved disputes concerning liens to be satisfied from the proceeds of the compromise, settlement, or judgment;
- (5) The petitioner’s attorney did not become involved in the matter at the direct or indirect request of a person against whom the claim is asserted or an insurance carrier for that person;
- (6) The petitioner’s attorney is neither employed by nor associated with a defendant or insurance carrier in connection with the petition;
- (7) If an action has been filed on the claim:
 - (A) All defendants that have appeared in the action are participating in the compromise; or
 - (B) The court has

finally determined that the settling parties entered into the settlement in good faith;

(8) The judgment

for the minor or claimant with a disability (exclusive of interest and costs) or the total amount payable to the minor or claimant with a disability and all other parties under the proposed compromise or settlement is \$50,000 or less or, if greater:

(A) The total

amount payable to the minor or claimant with a disability represents payment of the individual-person policy limits of all liability insurance policies covering all proposed contributing parties; and

(B) All proposed

contributing parties would be substantially unable to discharge an adverse judgment on the claim from assets other than the proceeds of their liability insurance policies; and

(9) The court does not otherwise order.

III.

DISCUSSION

The

Petition is properly filed on MC-350EX and is verified by Petitioner. (Petition pdf p. 7.) Gil Najum ("Minor Claimant") settled with Defendants Angelica Espinoza Pena and Juan Ramos ("Defendants") for \$25,000. (Petition ¶ 11 pdf p. 3.) On August 23, 2023, Minor Claimant was struck by Defendants' vehicle. (Petition ¶¶ 5-6 pdf p. 2.) Minor Claimant suffered injuries to his back. (Petition ¶¶ 6-7 pdf p. 2.) Minor Claimant received treatment from a chiropractor and pain management. (Petition ¶ 8 pdf p. 2.) Minor Claimant has recovered completely from his injuries and has no permanent injuries. (Petition ¶ 9 pdf p. 3.) A medical report is submitted with the Petition as Attachment 9. (Petition Attachment 9 pdf pp. 8-15.)

Minor

Claimant's medical expenses, before reductions, total \$8,337.80. (Petition ¶

13a pdf p. 4.) After reductions, the total expenses to be paid or reimbursed from the proceeds total \$5,731.34. (Petition ¶ 13a pdf p. 4.)

Minor

Claimant's counsel seeks \$8,333.33 in attorneys' fees. (Petition ¶ 14 pdf p. 4.) The Retainer Agreements are attached as Attachment 14a. (Petition Attachment 14a pdf pp. 28-37.) The Retainer Agreement provides for 33 and 1/3% of any gross recovery obtained if the matter is settled without filing suit or demanding arbitration/mediation, 40% if suit is filed or arbitration/mediation is demanded, or 45% if the matter is arbitrated, mediated, trial preparation progresses to the point of designating expert witnesses, or the time for designation of expert witnesses passes, subject to court order in the case of a minor. (Attachment 14a pdf p. 29.) Minor Claimant's counsel submits a declaration stating they are requesting 33 and 1/3% of the gross recovery. (Petition Attachment 18a Aviram Declaration ¶ 2 pdf p. 41.)

The

net balance of proceeds remaining for Minor Claimant is \$10,935.33 (Petition ¶ 16 pdf p. 5.)

Petitioner

requests the funds be deposited in insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the court. (Petition ¶ 19b(2) pdf p. 6.) Attachment 19b(2) specifies the name, branch, and address of the depository. (Attachment 19b(2) pdf p. 46.)

Minor

Claimant's medical expenses before any reductions total \$8,337.80. (Petition ¶ 13 pdf p. 4.) After reductions, the total amount of medical expenses to be paid or reimbursed from the proceeds is \$5,731.34. (Petition ¶ 13 pdf p. 4.)

Petitioner

states all medical expenses have been paid by private insurance, Medicare, or Medi-Cal. (Petition ¶ 13g pdf p. 4.)

Minor

Claimant's counsel's declaration sufficiently discusses the factors set forth in California Rules of Court, rule 7.955(b). (Petition Attachment 18a Aviram Declaration ¶¶ 1-13 pdf pp. 39-44.)

The

Petition contains the following deficiencies.

Petitioner

states that “[o]ther plaintiffs or claimants” including “Gil Najum” is receiving \$10,435.33 from the proposed settlement. (Petition ¶ 12 pdf p. 3.) Petitioner’s name is Tali Kestelman. (Petition ¶ 1 pdf p. 1.) Minor Claimant’s name is Gil Najum. (Petition ¶ 2 pdf p. 1.) Further, Minor Claimant’s counsel is representing or employed by another party involved in this matter. (Petition ¶ 18 pdf p. 5.) But the Petition states counsel has neither received nor expects to receive attorneys’ fees or other compensation in addition to that requested in this petition for services provided in connection with the claim giving rise to this petition. (Petition ¶ 18 pdf p. 5.) The court requires an additional explanation as to who else is receiving compensation from the proposed settlement and whether Minor Claimant’s counsel has received or is expecting to receive attorneys’ fees from that person.

IV.

CONCLUSION

For the foregoing
reasons, the Petition is denied.

Dated: August

14, 2026 _____ Hon.

Eric Harmon

Judge

of the Superior Court